

1 ENGROSSED SENATE
2 BILL NO. 1948

By: Logan of the Senate

3 and

4 Fetgatter of the House

5
6 An Act relating to fireworks; amending 68 O.S. 2021,
7 Section 1623, which relates to conditions for
8 storage, transportation, sale, and use; updating
9 statutory language; removing certain requirements to
10 sell fireworks within certain time frame; prohibiting
11 counties from restricting certain firework display
under certain circumstances; and providing an
effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 68 O.S. 2021, Section 1623, is
14 amended to read as follows:

15 Section 1623. A. Consumer ~~Fireworks~~ fireworks may be legally
16 stored, transported, sold, and used in this state with the
17 exceptions and conditions specified under the provisions of Section
18 1621 et seq. of this title and consistent with Section 22-110 of
19 Title 11 of the Oklahoma Statutes. Novelties may be legally stored,
20 transported, sold, and used in this state.

21 B. All fireworks storage and sales areas shall be conspicuously
22 posted with signs reading "FIREWORKS-NO SMOKING".

23 C. Fireworks offered for retail sale ~~must~~ shall be sold
24 according to the National Fire Protection Association (NFPA) 1124

Chapter 7, 2006 Edition. Any facility licensed to sell consumer fireworks prior to November 15, 2009, shall be exempt from the NFPA regulations listed in this subsection but shall remain under the regulation of the date of licensure. Mail-order sales to consumers are prohibited through any medium of either interstate or intrastate commerce. Sales of fireworks ~~may only~~ shall be made at properly licensed retail locations within ~~the State of Oklahoma~~ this state. A sales clerk ~~must~~ shall be on duty to serve the consumer at the time of purchase.

D. An enclosed building used for sale of fireworks to the public shall be built according to the International Building Code (IBC) 2006 Edition ~~and/or~~ or the codes and standards adopted by the Oklahoma Uniform Building Code Commission.

E. The retail license holder shall be responsible for the safe operation of retail sales to the public. The retail license holder shall be at least sixteen (16) years of age.

F. Fireworks may be sold by licensed manufacturers, distributors, or wholesalers at wholesale or retail and by retailers to residents and nonresidents of the state ~~from January 1 until December 31 of each calendar year. Fireworks may only be sold by licensed retailers from June 15 until July 6 or the first Sunday after July 4th, whichever is later, and from December 15 until January 2 to residents and nonresidents of the state each calendar year.~~

1 G. Nothing in Section 1621 et seq. of this title shall be
2 construed to require the State Fire Marshal to inspect or cause to
3 be inspected portable retail fireworks stands, tents, or other
4 nonrigid shelters prior to opening; provided, the provisions of this
5 subsection shall not prohibit the local governing authority of the
6 location of the portable retail fireworks stand, tent, or other
7 nonrigid shelter from inspecting such stands, tents, or other
8 nonrigid shelters prior to opening.

9 H. No county shall prohibit a private outdoor firework display
10 for a noncommercial purpose, provided that:

11 1. Such display is located on private property; and

12 2. No county burn ban is in effect as provided for in Section
13 16-26 of Title 2 of the Oklahoma Statutes.

14 SECTION 2. This act shall become effective November 1, 2026.

15 Passed the Senate the 17th day of March, 2026.

16

17

Presiding Officer of the Senate

18

19 Passed the House of Representatives the ____ day of _____,
20 2026.

21

22

Presiding Officer of the House
of Representatives

23

24